

[16. **Appointment of Surveyor.**— Trustees who are exercising the statutory power of sale conferred by the Lands Clauses Consolidation Act, 1845, cannot appoint one of themselves to be the surveyor to value the land under the 9th section of the act, for the appointment of a surveyor under that section is intended as a check on the action of the trustees (c).]

Thirdly. In the case of co-trustees the office is a *joint* one.¹

1. **Trust a joint office.**— Where the administration of the trust is vested in *co-trustees*, they all form as it were but one collective trustee, and therefore must execute the duties of the office in their *joint* capacity (d). It is not uncommon to

[(c) *Peters v. Lewes and East* (d) See *Ex parte Griffin*, 2 Gl. & Grinstead Railway Company, 16 Ch. J. 116. D. 703, 18 Ch. D. 429.]

¹ *Co-trustees.*— Where there are two or more trustees, they must act jointly; *Austin v. Shaw*, 10 Allen, 552; *Vandever's App.* 8 Watts and S. 405; 42 Am. Dec. 305; *Low v. Perkins*, 10 Vt. 532; 33 Am. Dec. 217; *Smith v. Wildman*, 37 Conn. 384; *Cox v. Walker*, 26 Me. 504; *King v. Stow*, 6 Johns. Ch. 323; *White v. Watkins*, 23 Mo. 423; *Holcomb v. Holcomb*, 3 Stock. 281. If any trustee, who has accepted, refuses to act, or for any reason is incapacitated, the others cannot act, but must apply to court for relief; *Guyton v. Shane*, 7 Dana, 498; *Ridgeley v. Johnson*, 11 Barb. 527; *Wood v. Wood*, 5 Paige, 696; *Scruggs v. Driver*, 31 Ala. 274; *Smith v. Wildman*, 37 Conn. 384; one trustee cannot convey or pledge without the assent of the others, and one taking with notice gets no title; *Ham v. Ham*, 58 N. H. 70; *Learned v. Welton*, 40 Cal. 349; a compromise by one co-trustee only is void; *Boston v. Robbins*, 126 Mass. 384. The rules as to joint action are less strict in America than in England; the payment of a mortgage to one co-trustee is a good payment; *Bowes v. Seeger*, 8 Watts & S. 222; all trustees must join in conveyance of land, and if they do not there is no conveyance, even *pro tanto*; *Sinclair v. Jackson*, 8 Cow. 543; if a deed is not signed by all the trustees, the grantee must show that the others are dead; *Burngarner v. Coggsell*, 49 Mo. 259; *Learned v. Welton*, 40 Cal. 349; though it has been held that the assent of all the trustees may in some cases be presumed; *Vandever's App.* 8 Watts & S. 405. Whether checks must be signed by all the trustees depends upon the manner in which the deposits are made and the arrangement with the bank; though a conveyance by one co-trustee is defective, yet if there is an entry thereunder, it is sufficient to cause the Statute of Limitations to run against the trustees and *cestui que trust*; *Smilie v. Biffle*, 2 Pa. St. 52; 44 Am. Dec. 156. In all private trusts, unless modified by statutes, all the trustees must concur; *Moore v. Ewing*, Cox, 144; 1 Am. Dec. 195; *Blin v. Hay*, 2 Tyler, 304; 4 Am. Dec. 738; *Towne v. Jaquith*, 6 Mass. 46; 4 Am. Dec. 84; *Green v. Miller*, 6 Johns. 39; 5 Am. Dec. 184; *Patterson v. Leavitt*, 4 Conn. 50; 10 Am. Dec.